

ELIZABETH II



1964 CHAPTER xiv

An Act to confer powers on the mayor, aldermen and burgesses of the borough of Barry in relation to the sale or other disposition of certain lands at Barry Island; and for purposes incidental thereto. [10th June 1964]

WHEREAS the borough of Barry (hereinafter called "the borough") is a borough under the government of the mayor, aldermen and burgesses of the borough (hereinafter called "the Corporation"):

And whereas certain land within that part of the borough known as Barry Island (hereinafter called "the said land") is held by the Corporation by virtue of the conveyances specified in Part II of the schedule to this Act:

And whereas the public and the inhabitants at large have since the acquisition of the said land had access thereto and the use and enjoyment thereof (whether as a public walk or pleasure ground or otherwise) and by virtue of such access or use and enjoyment have acquired or may be said to be entitled to a beneficial interest in the said land:

And whereas it would be of considerable benefit and advantage to the borough and the inhabitants thereof if the Corporation were enabled, as they desire, to sell, lease or otherwise dispose of the said land (together with certain other land within the borough) for the purpose of commercial development:

And whereas by reason of a recent decision of the courts it is apprehended that the existence of a beneficial interest enjoyed by the public or the inhabitants at large as aforesaid would preclude the Corporation, without further authority, from disposing of the said land in the manner desired:

And whereas there are within the borough considerable areas of pleasure grounds and open space available for use and enjoyment by the public, and the disposal by the Corporation of the said land would not represent any significant reduction in the total of the areas so available:

And whereas it is expedient that the several provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title. 1. This Act may be cited as the Barry Corporation Act 1964.

Interpretation. 2.—(1) In this Act, unless the subject or context otherwise requires—

“ the borough ” means the borough of Barry;

“ the Corporation ” means the mayor, aldermen and burgesses of the borough;

“ the Minister ” means the Minister of Housing and Local Government;

“ the scheduled lands ” means the lands which are described in Part I of the schedule to this Act.

(2) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

3.—(1) Notwithstanding any rule of law, the Corporation may sell, lease or otherwise dispose of the scheduled lands free from any beneficial interest or other right therein of the public or the inhabitants at large other than rights to the use and enjoyment of highways and the right of access to the ancient monument known as St. Baruch's Chapel conferred by section 13 of the Ancient Monuments Consolidation and Amendment Act, 1913: Power to sell, etc., scheduled lands free from certain rights, etc.

Provided that the Corporation shall not, without the consent of the Minister, sell, lease or otherwise dispose of the scheduled lands for a consideration less than the current market value thereof, but a purchaser or lessee shall not be concerned to inquire whether such consent is necessary or has been obtained.

(2) Subsection (5) of section 5 (Extension of power to acquire land by agreement and use disposal etc. thereof) of the Barry Corporation Act, 1957, shall apply to capital money received by the Corporation in respect of the sale, leasing or other disposition of the scheduled lands under this section as it applies to capital money received in respect of a transaction under the said section 5.

4. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund of the borough. Costs of Act.

SCHEDULE

Section 2.

PART I

DESCRIPTION OF THE LANDS DEALT WITH BY THE FOREGOING ACT

Lands within the borough containing 46.64 acres or thereabouts and comprising the following parcels:—

First, 12.56 acres or thereabouts being enclosure numbered 7267 on the 1/2500 ordnance map (edition of 1956) (Plan S.T. 1166) known as Spion Kop, bounded to the west by Station Approach Road; to the north by the boundary fence of land occupied by the British Railways Board; to the east in part by Friars Road, the northern boundary of No. 2 Friars Road, the northern and western boundaries of enclosure numbered 8774 on the said map (Plan S.T. 1166), the western boundary of St. John's Methodist Church, the western and southern boundaries of the Welfare Clinic, the western edge of a lane approximately 10 feet wide at the rear of Nos. 12 to 26 (even numbers inclusive) Friars Road and the western boundary of No. 26 Friars Road; and bounded on the south by Friars Road between No. 26 Friars Road and Station Approach Road junction;

Secondly, an area of 2.45 acres or thereabouts comprising allotment gardens at Earl Crescent bounded on the west by Redbrink Crescent and Friars Road between the western boundary of No. 70 Redbrink Crescent and the junction of Earl Crescent; on the north-west by Earl Crescent; on the north-east by the rear access lane to premises Nos. 20 to 42 (even numbers inclusive) Redbrink Crescent; and on the east and south by the rear boundaries of premises Nos. 44 to 70 (even numbers inclusive) Redbrink Crescent, but excluding land to the north-west comprising premises Nos. 1 and 2 Earl Crescent and religious and club premises fronting Earl Crescent;

Thirdly, all those parcels of land approximately 20.38 acres in extent between Forrest Drive, Friars Road, Redbrink Crescent and high-water mark of medium tides including enclosures numbered 0269, 0063, 0152, 0742, 0531 and 0119 on the 1/2500 ordnance map (edition of 1955) (Plan S.T. 1266) and enclosures numbered 9770, 9367, 9664, 9756, 8723, 5751 (part) and 5348 (part) (Plan S.T. 1166), bounded by Forrest Drive, Friars Road, Redbrink Crescent, the eastern boundary of enclosure numbered 0269 (Plan S.T. 1266) and its continuation in a north-easterly direction to its junction with Redbrink Crescent, by high-water mark of medium tides to the east, south and west to the Whitmore Bay Promenade at its commencement at grid reference No. 11806630 and thence by a line drawn across the width of the promenade to the foot of the embankment at a distance of approximately 40 feet from the sea wall, continuing in a north-westerly direction parallel to the sea wall at a distance of approximately 40 feet therefrom along the rear line of the promenade to the north-eastern corner of the eastern shelter; thence along the

eastern, southern and western sides of that shelter; thence by a line drawn in a north-north-easterly direction to and along the north-eastern edge of, a footpath leading in a north-westerly direction to grid reference No. 11596649, thence in a northerly direction to the footpath bounding the rear of the Friars Road public conveniences, thence along the south-eastern edge of that footpath in an approximately north-easterly direction to its junction with Friars Road, thence in an easterly direction along the southern boundary of Friars Road to its junction with Forrest Drive excluding enclosure numbered 0419 (Plan S.T. 1266) and the land lying to the south-south-east of that enclosure between the south-eastern boundary of that enclosure and high-water mark of medium tides;

SCH.
—cont.

Fourthly, all that area of land bounded by Forrest Drive and Friars Road comprising approximately 11.25 acres, including enclosures numbered 8649, 9123, 9142, 9837 and 8734 (Plan S.T. 1166) and enclosures numbered 0137 and 0141 (Plan S.T. 1266), but excluding enclosures numbered 9428 and 9338 (Plan S.T. 1166), enclosure numbered 0129 (Plan S.T. 1266) and the access road from Forrest Drive to enclosure numbered 9338 (Plan S.T. 1166).

PART II

Preamble.

PARTICULARS OF CONVEYANCES RELATING TO THE SAID LANDS

Date	Parties
31st July, 1909 ...	The Right Honourable Robert George Earl of Plymouth of the one part and the urban district council of Barry of the other part.
20th June, 1927 ...	The Plymouth Estates Limited of the one part and the urban district council of Barry of the other part.
1st June, 1931 ...	The Plymouth Estates Limited of the one part and the urban district council of Barry of the other part.
11th March, 1949 ...	The Plymouth Estates Limited of the one part and the mayor, aldermen and burgesses of the borough of Barry of the other part.
19th September, 1952	The Right Honourable Other Robert Ivor Earl of Plymouth of the first part the Right Honourable Other Robert Ivor Earl of Plymouth the Right Honourable Irene Corona Dowager Countess of Plymouth and Michael Charles Birchall Sayer of the second part and the mayor, aldermen and burgesses of the borough of Barry of the third part.

Table of Statutes referred to in this Act.

Short title	Session and chapter
Ancient Monuments Consolidation and Amendment Act 1913	3 & 4 Geo. 5 c. 32.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Barry Corporation Act 1957	5 & 6 Eliz. 2 c. xxxi.

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